

Young-Han LEE

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PROFILE

Korean and Washington, D.C. attorney with seventeen years of practice spanning criminal investigation and prosecution, evidence discovery in contested proceedings, corporate criminal and regulatory defence, and group-wide legal and governance oversight. Began practice as a Judge Advocate in the Republic of Korea Army, investigating and prosecuting military criminal offences and advising commanders of the ROK–US Combined Forces Command, United Nations Command and U.S. Forces Korea. Later led discovery and motions practice in a U.S. International Trade Commission investigation involving trade-secret misappropriation and patent infringement — taking and defending depositions, drafting the motion for default and sanctions, securing sanctions against the opposing party and sustaining the resulting default judgment before the Commission. Represented companies and their executives, including the former Head of Korea of Merrill Lynch, in Korean criminal and regulatory proceedings. Currently Chief Strategy Officer and Chief Legal Officer of d'strict, developer and operator of ARTE MUSEUM, overseeing regulatory and criminal proceedings, board governance and overseas-entity compliance across Korea, the United States, Japan, Taiwan and China, and directing U.S. listing preparation with a Big Four advisor including related-party clean-up, disclosure readiness and internal accounting control. Earlier practice at Dentons (Washington, D.C. and Seoul) and Bae, Kim & Lee also covered cross-border M&A and private equity, international arbitration, and financial, AML/CFT and technology regulation. Admitted in Korea (2009) and Washington, D.C. (2014); passed the U.S. CPA examination (AICPA, Maine, 2012); Certified Securities Investment Advisor, Certified Derivatives Investment Advisor and Certified Collective Investment Manager of the Korea Financial Investment Association. Holds a Master of Laws in Securities Law and Commercial Law from Seoul National University and further LL.M.s from Georgetown and Northwestern. Full professional fluency in Korean and English; business-level Japanese.

EXPERIENCE

D'STRICT KOREA, INC.

Seoul, Korea

Chief Strategy Officer & Chief Legal Officer

August 2023 – Present

- Lead corporate strategy and the group-wide legal function for d'strict, developer and operator of ARTE MUSEUM, across venues and projects in Korea, the United States, Japan, Taiwan and China.
- Personally conduct and close internal investigations across the group — intake and triage of reports, deciding whether to open and how wide, interviews, review of company records and data, findings, and disciplinary and remedial recommendations.
- Investigate workplace harassment complaints under the statutory duty in article 76-3 of the Labor Standards Act — protective measures on intake, investigation opened without delay, findings and disciplinary recommendations, and post-closure monitoring for retaliation.
- Oversee disputes and enforcement across jurisdictions — international settlements, arbitration and litigation, and Korean regulatory and criminal proceedings — alongside IP advisory, corporate governance and tax planning.
- Advise on the foreign-exchange and AML/CFT implications of USD-stablecoin mint and redemption operations, and on token economics and token buyback arrangements.
- Direct preparation for a U.S. listing alongside a Big Four advisor — holding-company structure, corporate housekeeping, related-party clean-up and disclosure readiness.
- Establish and govern overseas subsidiaries and joint ventures, from entity formation and capital structure through board and officer appointments, board and shareholder proceedings, and ongoing compliance.
- Design and execute group reorganisations, including a capital reduction and shareholder exit for an affiliate.
- Drive fundraising and investor relations — investor due diligence, term-sheet negotiation and definitive documentation with domestic and global strategic and financial investors.
- Review and negotiate the group's day-to-day commercial contracts across licensing, distribution, supply, services and real-estate arrangements, and advise the business on legal, regulatory and operational questions as they arise.

DENTONS LEE

Seoul, Korea

*Partner**August 2020 – July 2023*

- Represented a party in a U.S. International Trade Commission investigation involving trade-secret misappropriation and patent infringement, leading discovery and motions practice, securing sanctions against the opposing party and sustaining the resulting default judgment before the Commission.
- Advised Korean and multinational clients on cross-border M&A, private equity and strategic investments, technology and platform regulation, and international disputes.
- Acted as company-side counsel to d'strict on IMM Investment's private-equity investment into the group, from term sheet through definitive documentation to closing in January 2023.

DENTONS US LLP

Washington, DC

*Associate**August 2019 – August 2020*

- Worked on a U.S. International Trade Commission investigation involving trade-secret misappropriation.
- Supported discovery, took and defended depositions, and contributed to motions practice.
- Drafted the motion for default and sanctions against the opposing party.

MORGAN, LEWIS & BOCKIUS LLP

Washington, DC

*Intern**January 2019 – April 2019*

- Wrote legal updates on energy and environmental law, capital markets and finance.

BAE, KIM & LEE LLC

Seoul, Korea

*Senior Associate**April 2014 – July 2019*

- Advised clients of one of Korea's largest law firms on financial regulation, energy markets, cross-border transactions, defence procurement and technology law, as a member of the firm's Legislation & Administration and Environment practices.
- Negotiated and drafted transaction documents, including investment agreements, share purchase agreements and partnership agreements.
- Represented Samsung Electronics, Hyundai Mobis, Asiana Airlines, Korea Aerospace Industries and other leading Korean corporations in high-profile matters.
- Advised clients on the regulation of autonomous vehicles, electric vehicles, drones and robotics.

OLYMPIC BROADCASTING SERVICES (OBS)

PyeongChang, Korea

*Arbitrator**January 2018 – March 2018*

- Sat as a member of the tribunal of independent arbitrators.
- Resolved multiple disputes over alleged breaches of international contracts between OBS and National Olympic Committees.

PYEONGCHANG 2018 OLYMPIC & PARALYMPIC WINTER GAMES (POCOG)

Seoul / PyeongChang, Korea

*Legal Advisor**August 2017 – June 2018*

- Advised POCOG on contractual, intellectual property and tax issues arising from preparation for the Games.
- Drafted agreements between POCOG and its sponsors and partners.

ROK-US COMBINED FORCES COMMAND**SEOUL, KOREA***Head of Legal Affairs**April 2013 – March 2014*

- Advised the Commander of the ROK-US Combined Forces Command, United Nations Command and U.S. Forces Korea on rules of engagement and Status of Forces Agreement (SOFA) regulations.
- Chaired regular meetings with U.S. judge advocates on rules of engagement, logistics and operations.
- Seconded from the Judge Advocate General's (JAG) Corps of the Republic of Korea Army.

DEFENSE ACQUISITION PROGRAM ADMINISTRATION

Seoul, Korea

*Project Manager**April 2012 – March 2013*

- Ran an international arbitration over a USD 50 million liquidated-damages claim arising from defective ammunition, from the briefs through to settlement.

JUDGE ADVOCATE GENERAL'S (JAG) CORPS, REPUBLIC OF KOREA ARMY

Head of Legal Staff / Litigation Officer

Korea

April 2009 – March 2014

- Investigated and prosecuted military criminal offences.
- Advised the Commander of the 12th Infantry Division on rules of engagement.
- Represented the Republic of Korea in civil litigation over damages claims involving the Korean Government.

EDUCATION

GEORGETOWN UNIVERSITY LAW CENTER

Washington, DC

Master of Laws (Energy Law)

May 2019

Relevant Courses: Financial Regulation of Energy Markets, Taxation of Energy Markets, Regulation of Derivatives, International Project Financing

NORTHWESTERN PRITZKER SCHOOL OF LAW

Seoul, Korea/ Chicago, IL

Master of Laws (Joint Degree Program in Seoul)

May 2014

Graduated with honors

Relevant Courses: International Taxation, Business Associations, Contract Law

SEOUL NATIONAL UNIVERSITY GRADUATE SCHOOL OF LAW

Seoul, Korea

Master of Laws in Securities Law & Commercial Law

February 2009

Coursework completed

JUDICIAL RESEARCH & TRAINING INSTITUTE (SUPREME COURT OF KOREA)

Seoul, Korea

Certificate of Completion, General Studies of Law

January 2009

Relevant Practicum Program: Judicial Training as Law Clerk

SEOUL NATIONAL UNIVERSITY SCHOOL OF LAW (UNDERGRADUATE INSTITUTION)

Seoul, Korea

Bachelor of Laws

February 2005

BAR ADMISSIONS

Washington D.C. Bar (September 2014), Korean Bar (January 2009)

PROFESSIONAL DEVELOPMENT

- Passed the Uniform CPA Examination, American Institute of Certified Public Accountants (AICPA), State of Maine (June 2012)
- Certified Securities Investment Advisor, Korea Financial Investment Association (September 2009)
- Certified Derivatives Investment Advisor, Korea Financial Investment Association (November 2009)
- Certified Collective Investment Manager, Korea Financial Investment Association (December 2009)

LANGUAGE SKILLS

Korean (native), English (full professional), Japanese (business level)

PUBLICATIONS

- Legal Issues Arising out of Autonomous Vehicle Operation (BKL Column, January 2018)
- China's Ratification on Nagoya Protocol. How Do We Respond? (BKL Legal Update, September 2016)
- Paris Agreement. What we expect and need (BKL Legal Update, January 2016)

REPRESENTATIVE & TRANSACTIONAL MATTERS

INVESTIGATIONS, CRIMINAL & REGULATORY

- Conducted and closed internal investigations as Chief Legal Officer — misconduct, conflicts of interest and policy violations — owning each matter from intake through findings, disciplinary recommendation and remediation.
- Investigated workplace harassment complaints under Korean statutory requirements, designing interim protective measures, reporting firewalls where the subject sat in the normal chain, and post-closure retaliation monitoring.

- Led discovery and motions practice in a U.S. International Trade Commission investigation involving trade-secret misappropriation and patent infringement; took and defended depositions, drafted the motion for default and sanctions, secured sanctions against the opposing party and sustained the resulting default judgment before the Commission.
- Represented the former Head of Korea of Merrill Lynch in criminal prosecution and at trial.
- Represented companies and their executives in Korean criminal and regulatory proceedings, including tax and industry-licensing matters.
- Represented Asiana Airlines in administrative litigation challenging a 60-day suspension imposed by the Ministry of Land, Infrastructure and Transport.
- Represented the Korean Government in an international arbitration over a USD 50 million liquidated-damages claim concerning defective destroyer ammunition.
- As a Judge Advocate in the Republic of Korea Army, investigated and prosecuted military criminal offences.

GOVERNANCE, COMPLIANCE & LISTING READINESS

- Advised on multi-jurisdiction group structuring for a U.S. holding company, covering share capital, shareholder rights and board governance.
- Established overseas subsidiaries and joint ventures in the United States and Japan, from incorporation and capital contribution through transfer of member interests to the holding company and appointment of an executive officer.
- Directed U.S. listing preparation with a Big Four advisor, including holding-structure analysis and disclosure readiness.
- Identified a mismatch between the charter definition of Qualified IPO (offshore exchanges only) and the actual listing track, and mapped the resulting failure of automatic-conversion, CB-conversion and refixing provisions into charter and investment-agreement amendments.

FINANCIAL CRIME, DIGITAL ASSETS & TECHNOLOGY REGULATION

- Advised a blockchain infrastructure provider on foreign-exchange and AML/CFT implications of USD-stablecoin mint and redemption operations.
- Advised renowned game and content issuers on token economics and token buyback arrangements.
- Advised the Ministry of Trade, Industry and Energy on a comparative review of the regulatory regimes governing electric vehicles, autonomous vehicles, robotics and drones in Korea and other developed jurisdictions.
- Contributed regular articles on developments in autonomous vehicles and drones to Money Today, a leading Korean financial daily.

M&A, PRIVATE EQUITY & STRATEGIC INVESTMENTS

- Acted as company-side counsel on IMM Investment's private-equity investment into the d'strict group, from term sheet through due diligence and definitive documentation to closing.
- Advised the Korean defence company LIG Nex1 on a merger and acquisition transaction.
- Led investor due diligence, term-sheet negotiation and definitive documentation for strategic and financial investment into the d'strict group, running parallel processes with Japanese, European and U.S. investors.
- Negotiated, over three term-sheet rounds, a USD 12M convertible bond investment (pre-money USD 200M) with triple refixing mechanics and call (capped at 50% of issue price) and put (8% YTM, 12% on representation breach) features, and introduced an "Adjusted EBITDA" definition; separately, administered EBITDA-triggered automatic conversion of redeemable convertible preferred shares in a private-equity investment.
- Designed and executed a capital reduction and shareholder exit for a group affiliate.

CAPITAL MARKETS & FINANCIAL REGULATION

- Advised financial companies on the issuance of financial investment products.
- Registered Royal Dutch Shell as a trading participant in the Korea Exchange (KRX) Renewable Energy Certificate (REC) market and represented it in REC transactions.
- Designed the legal structure for a primary listing of a foreign issuer on the Korean market, covering offshore-holdco direct listing versus a domestic SPC route, accounting-standard recognition (US-GAAP), articles-of-incorporation overhaul, three-jurisdiction legal opinions, transfer agent, lock-up and internal accounting control requirements.
- Reviewed corporate credit-facility and lending terms on the borrower side with U.S. investment banks, alternative lenders and commercial banks, alongside parallel strategic investments from Japanese and European investors.